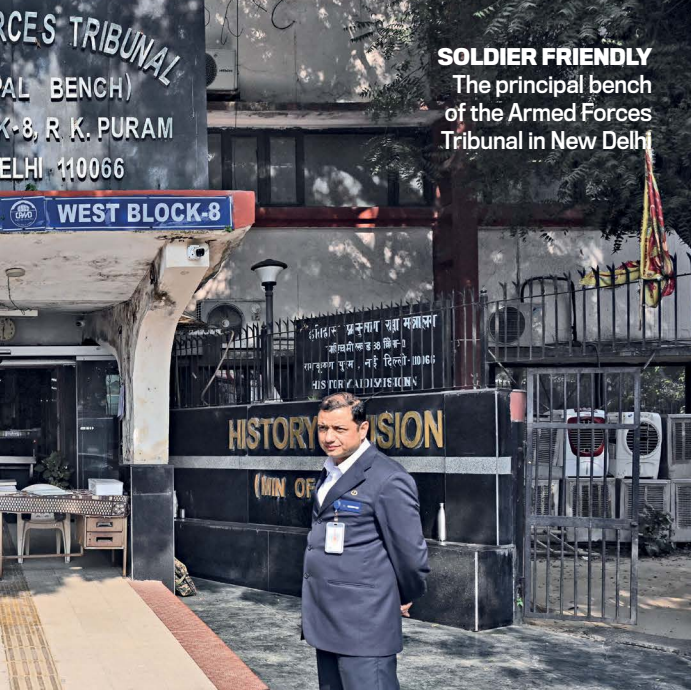


SOLDIER FRIENDLY
The principal bench of the Armed Forces Tribunal in New Delhi

ARUN KUMAR



"To challenge disability awards for individual soldiers in the highest courts weakens the bond between the soldier and the state. This could have far-reaching repercussions"

LT GEN. D.S. HOODA
Former Northern Army commander

instead with the new category of 'impairment relief'. The annual outflow on disability pensions is around Rs 10,000 crore. The tightening of disability rules, like that on lifestyle diseases, is likely to save Rs 4,000 crore, according to MoD estimates. Pointing to extreme weather conditions at India's border areas, Lt Gen. Hooda says that soldiers serving in high altitude areas are susceptible to an element of disability. Therefore, to keep lifestyle diseases out of the ambit of disability seems "both oxymoronic and illogical", he says. "The more important issue," he adds, "is that the state must be seen as supporting the soldier who unhesitatingly puts his life on the line in the discharge of his duties." Lt Gen. Rakesh Sharma, former Adjutant General (who heads the JAG), has expressed concern about the MoD's decision to challenge disability benefits. He emphasises that the government should ideally respect decisions of the AFT.

THE MINISTRY'S VIEW

According to established protocol, any decision made by the AFT regarding disability benefits is reviewed by the MoD's payment department. If it determines that the decision is inconsistent with prescribed guidelines, the matter is referred to the legal department. Subsequently, the legal department seeks the opinion of the law ministry before challenging the decision in a higher court. Ministry sources claim that behind the recent spree of petitions challenging disability benefits lies a disconcerting fact. An internal audit in 2023 revealed that a high number of officers were claiming disabilities to receive higher pensions, leading to concerns about a potential misuse of the system. This, say officials, was behind the new, tighter disability pension rules as well as many existing cases to be challenged in court. The MoD audit found that around 40 per cent officers were claiming disabilities to get higher pension benefits.

Even the Comptroller and Auditor General of India (CAG), in a report presented in Parliament in March 2023, raised concerns about disability pensions awarded to a "higher percentage" of officers, especially medical officers. The report stated that 36-40 per cent of officers leaving service each year receive disability pension, compared to 15-18 per cent of jawans.

In response to queries from INDIA TODAY, the MoD said that much of the litigation takes place because many AFT orders are not in accordance with the pension regulations and are against existing policies, which have heavy financial implications. "The general proclivity in the honourable AFT has been to either ignore or overrule such established rules, regulations and policy provisions," the MoD said. Consequently, the ministry has no option but to file appeals in higher courts.

In several cases, the military's medical boards deemed disabilities in some servicemen "neither attributable to nor aggravated by service", although these rulings were overturned on appeal by the AFT. Accepting the AFT verdicts, the MoD approached the ministry of finance for their implementation. "As implementation of such cases is not under the delegated power of the ministry, as pointed out by MoD (Finance), the matter was referred to the ministry of finance for implementation. However, the MoF advised to go for appeal on all such cases since the matters would have serious financial implications. Consequently, there is a flood of litigation in such cases in AFT and high courts," the MoD said.

To find a way out of the cycle of litigation, the Department of Ex-servicemen Welfare of the MoD held a meeting with the Attorney General on November 11. A comprehensive review of AFT judgments and pension policies is underway, with inputs sought from the army, navy and air force. At its core, this ongoing legal confrontation reveals a troubling disconnect between the state and its armed forces. The post-service dignity and security of many genuinely disabled soldiers are increasingly becoming collateral damage in bureaucratic wrangling. For a nation that prides itself on honouring its soldiers, no veteran should have to fight a battle for dignity. ■